Namburi Ajay Kumar vs State Nct Of Delhi on 10 October, 2025

Author: Sanjeev Narula

Bench: Sanjeev Narula

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3412/2025, CRL.M.A. 26649/2025 & CRL.M
26650/2025.
NAMBURI AJAY KUMAR
Through: Mr
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Ad

versus

STATE NCT OF DELHI
Through: Mr
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CORAM:
HON'BLE MR. JUSTICE SANJEEV NARULA
ORDER

% 10.10.2025

1. The present application filed under Section 483 of the Bharatiya Nagarik Suraksha Sanhita, 2023 seeks regular bail in proceedings arising from FIR No. 14/2024 registered under Sections 170/419/420/506/34/120B of the Indian Penal Code, 1860.1

2. The instant case concerns a financial cyber fraud wherein the Complainant, a senior citizen, was allegedly deceived and induced by certain unknown individuals impersonating as law enforcement officials, leading to a transfer of approximately INR 32,06,195/- from the Complainant's bank account. During the course of investigation, it was "IPC"

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The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/10/2025 at 22:43:53 found that INR 31,07,197/- out of the defrauded amount was credited to a Punjab National Bank account held in the name of the Applicant, operating under the title "Namburi Cloth Wholesale Supplier." The Applicant was apprehended and arrested on 7th November, 2024. Upon forensic examination of the bank transactions, it emerged that the credited amount was swiftly layered through successive transfers to multiple third-party accounts situated across different states. Accordingly, the Applicant has been charge-sheeted for offences under Sections 170, 419, 420, 506,

34 and 120B of IPC.

3. Mr. Pritish Sabharwal, counsel for the Applicant, raises the following grounds in support of the bail application:

> 3.1. The Applicant has been falsely implicated as his alleged role is limited solely to the receipt and further transfer of funds through his bank account. There is no allegation of impersonation, coercion, or direct contact with the complainant, nor is there any material, whether in the form of call records, electronic communication, IP logs, or other digital evidence, linking him to the actual perpetrators. Absent any demonstrable mens rea or prior knowledge of the fraudulent origin of the funds, mere routing of money cannot, by itself, constitute culpable involvement. 3.2. Further, upon becoming aware of the large credits into his accounts, the Applicant promptly lodged a complaint with the local police on 3rd November, 2023, thereby demonstrating his bona fide conduct. 3.3. Attention is drawn to the fact that one Ms. Manju Chowdhary who is stated to stand on a similar footing as the Applicant, has not been arrested, reflecting selective investigation and entitling the Applicant to parity. 3.4. The chargesheet has already been filed and further custody serves no This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 13/10/2025 at 22:43:53 purpose. Even in the chargesheet, the investigative agency has failed to attribute any specific role to the Applicant beyond the receipt of funds in an account opened at the suggestion of one Mr. Amit Shaw, who neither stands charge-sheeted nor properly investigated. No forensic audit or trail has been produced to suggest that the Applicant was aware of the illicit origin of the funds or shared any common intent with the principal offenders.

4. Per contra, Mr. Mukesh Kumar, APP for the State, opposes the bail application. He submits that the Applicant is part of an organised syndicate engaged in large-scale cyber cheating and has been a direct beneficiary of the defrauded amount. Investigation has revealed that a sum of INR 31,07,197/- pertaining to the present FIR was credited into the Applicant's bank account, which, within a span of one week (10th October, 2023 to 17th October, 2023), saw total credits and withdrawals amounting to INR 1,64,59,188/- for which no lawful source has been explained. Given the scale and sophistication of the fraud, it is urged that enlargement on bail would enable the Applicant to interfere with the ongoing investigation and frustrate efforts to unearth the larger network behind the offence. Cyber- crime, it is submitted, poses a grave threat to national security and constitutes an offence against society at large. There exists a real likelihood of the Applicant absconding or evading trial if released.

5. The Court has considered the aforenoted contentions. The Applicant was arrested 7th November, 2024 and has been in custody since. While it is true that the chargesheet has been filed, the same does not, ipso facto, entitle the Applicant to bail, particularly in light of the gravity and heinous nature of the alleged offence. The Supreme Court, in Bhagwan Singh v. Dilip This is a digitally

signed order.

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> "11. The grant of bail is a discretionary relief which necessarily means that such discretion would have to be exercised in a judicious manner and not as a matter of course. The grant of bail is dependent upon contextual facts of the matter being dealt with by the Court and may vary from case to case. There cannot be any exhaustive parameters set out for considering the application for grant of bail. However, it can be noted that:
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> 11.1. While granting bail the court has to keep in mind factors such as the nature of accusations, severity of the punishment, if the accusations entail a conviction and the nature of evidence in support of the accusations.
>
> 11.2. Reasonable apprehensions of the witnesses being tampered with or the apprehension of there being a threat for the complainant should also weigh with the Court in the matter of grant of bail. 11.3. While it is not accepted to have the entire evidence establishing the guilt of the accused beyond reasonable doubt but there ought to be always a prima facie satisfaction of the Court in support of the charge. 11.4. Frivolity of prosecution should always be considered and it is only the clement of genuineness that shall have to be considered in the matter of grant of bail and in the event of there being some doubt as to the genuineness of the prosecution, in the normal course of events, the accused is entitled to have an order of bail."

[Emphasis Supplied]

6. At this stage, it must be noted that the Court is not expected to conduct a mini-trial based on the evidence led by the parties, nor would it be appropriate to render findings that might prejudice either side. However, for the limited purpose of adjudicating the bail application, a prima facie assessment of the material on record is undertaken.

7. It is undisputed that the account in which the cheated amount was 2023 INSC 761.

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bank statements further reveal that prior to the alleged transaction, there were negligible or no substantial entries in the account. However, immediately upon receipt of INR 31,07,197/- linked to the present offence, the said sum was swiftly layered and transferred to multiple third-party accounts. Further, the investigation shows that between 10th October, 2023 to 17th October, 2023, the Applicant's account reflected multiple entries amounting to INR 1,64,59,188/-. These credits, prima facie, have no discernible lawful source, and the Applicant has also failed to offer any satisfactory explanation for the nature or origin of these transactions. These circumstances, taken together, prima facie indicate active participation in laundering of fraudulently obtained funds.

8. It is relevant to observe that the complaint cited by the Applicant was lodged on 3rd November, 2023, i.e., after the questioned funds had already been layered and transferred out of his account. Such post-facto lodging of complaint, at this stage, cannot at this stage be taken as conclusive proof of bona fide conduct. The authenticity and probative value of this complaint and will appropriately fall for determination during trial.

9. It is noted that economic offences of this scale are inherently grave, as they do not merely affect an individual complainant but undermine public confidence in the financial system and have wider ramifications for society at large. Such crimes often involve organised networks and complex layering of funds, making their detection and investigation particularly This is a digitally signed order.

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10. Further, as the prosecution witnesses are yet to be examined, there remains a significant risk of the Applicant tampering with evidence or intimidating the witnesses.

11. In light of the foregoing, the court finds no ground to allow the application.

12. Accordingly, the present application is dismissed.

13. It is clarified that any observations made in the present order are for the purpose of deciding the present bail application and should not influence the outcome of the trial and also not be taken as an expression of opinion on the merits of the case.

SANJEEV NARULA, J OCTOBER 10, 2025/MK This is a digitally signed order.

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